

Calendar Line 8

Case Name: *Shabana Pirani v. Sweet Jane Kathleen Hammon*

Case No.: 25CV480258

MOTION FOR DISCRETIONARY RELIEF

Defendant seeks discretionary relief pursuant to Code of Civil Procedure 473b from its failure to timely file its responsive pleading. Defendant attributes the initial failure to a breakdown in communication between the attorney, the legal secretary, and the firm's legal processing vendor.

While Defendant has explained the initial filing error amounting to excusable mistake and inadvertence within the meaning of CCP 473, the moving papers do not explain why relief was not sought until June 9, 2026, nearly five months after the responsive pleading was due on January 17, 2026. Nor do they address Defendant's failure to appear at the May 21, 2026 Case Management Conference. These omissions reflect a lack of diligence and weigh against granting discretionary relief.

Nevertheless, after balancing the relevant factors, the Court concludes that relief is appropriate. Plaintiff received timely service of Defendant's anti-SLAPP motion and therefore had timely notice of Defendant's intent to respond to the action. The record does not demonstrate that Plaintiff suffered any material prejudice as a result of the delayed filing, beyond the delay itself.

Moreover, Code of Civil Procedure section 425.16, subdivision (f), a special motion to strike may be filed within 60 days of the service of the Complaint or, in the court's discretion, at any later time upon terms it deems just. California courts have long recognized the strong policy favoring resolution of cases on their merits whenever reasonably possible.

The Court emphasizes, however, that this ruling should not be construed as approval of Defendant's conduct. Counsel bears the responsibility to ensure that documents submitted through an electronic filing service are actually accepted for filing and to monitor the status of the case thereafter. The unexplained five-month delay in seeking relief, together with Defendant's failure to appear at the Case Management Conference on May 21, 2026 falls well below the level of diligence the Court expects of litigants and counsel.

DISPOSITION:

Defendant's motion for discretionary relief under Code of Civil Procedure section 473(b) is GRANTED. Plaintiff's request for entry of default is DENIED.

Defendant to prepare the final proposed order, accompanied by the necessary Form EFS-020, within 7 days of the hearing.